

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DONALD POWELL,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
RAYMOND KELLY, Commissioner of the
New York City Police Department,
P.O. "JOHN" AZIZE, and
POLICE OFFICERS "JOHN DOES" 1-3,

Defendants.
-----X

SUMMONS

Index No.:

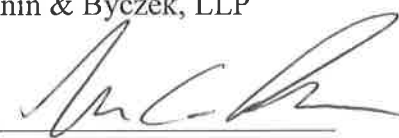
Plaintiff designates
KINGS COUNTY as
the place of trial.
The basis of venue is
the location where
incident occurred.

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to serve an Answer on the plaintiff's attorney(s)
within twenty (20) days after the service of this Summons, exclusive of the day of service (or
within 30 days after the service is complete if this Summons is not personally delivered to you
within the State of New York); and in case of your failure to appear or answer, judgment will be
taken against you by default for the relief demanded in the Verified Complaint:

Dated: Lake Success, New York
September 4, 2013

Attorneys for Plaintiff:
Cronin & Byczek, LLP

By: 

Moshe C. Bobker, Esq.
Attorneys for Plaintiff
1983 Marcus Avenue, Suite C-120
Lake Success, New York 11042
(516) 358-1700

TO: CITY OF NEW YORK

Law Department
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

One Police Plaza
New York, NY 10038

RAYMOND KELLY

One Police Plaza
New York, NY 10038

POLICE OFFICER "JOHN" AZIZE

Housing Bureau PSA 2
560 Sutter Avenue
Brooklyn, NY 11207

POLICE OFFICERS "JOHN DOES" 1-3

Housing Bureau PSA 2
560 Sutter Avenue
Brooklyn, NY 11207

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DONALD POWELL,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

Jury Trial Demand

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
RAYMOND KELLY, Commissioner of the
New York City Police Department,
P.O. "JOHN" AZIZE, and
POLICE OFFICERS "JOHN DOES" 1-3,

Defendants.
-----X

The Plaintiff DONALD POWELL by his attorneys, Cronin & Byczek, LLP, as and for his Verified Complaint against Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, RAYMOND KELLY, Commissioner of the New York City Police Department, POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3, each being sued in their individual and official capacities, respectfully set forth and allege, upon information and belief, that:

INTRODUCTION

1. This is an action for equitable relief and money damages on behalf of the Plaintiff DONALD POWELL (hereinafter referred to as "Plaintiff") who was being deprived of his constitutional and statutory rights, as a result of Defendants' THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3, Race and Color Discrimination, and was caused to be injured due to the intentional acts, including, but not limited to,

racial stereotyping, negligence, false imprisonment, false arrest, malicious prosecution, assault, battery, excessive force, negligent hiring, negligent supervision, negligent retention and disregard of employees who violated a rule, law or regulation.

JURISDICTION AND VENUE

2. The jurisdiction of this Court is invoked pursuant to the New York State Constitution, New York State Civil Rights Law, New York City Human Rights Law and common law.

PLAINTIFF

3. Plaintiff is a male citizen of the United States of America and is over twenty-one (21) years of age, and a resident of Kings County.

DEFENDANTS

4. Defendant CITY was and is a municipal corporation organized and existing under and by virtue of the law of the State of New York, and at all relevant times was Defendants' employer, with its central offices in the county of New York, and diverse other offices and facilities throughout the world.
5. Defendant NEW YORK CITY POLICE DEPARTMENT ("NYPD") operates under the direct authority of the CITY and is the official CITY agency and maintains control offices at One Police Plaza, New York, New York.
6. At all times hereinafter mentioned, Defendant POLICE OFFICER "JOHN" AZIZE was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department.
7. At all times hereinafter mentioned, Defendants "JOHN DOES" 1-3 were and still are employed by THE CITY OF NEW YORK as a member of the New York City Police

Department.

PROCEDURAL HISTORY

8. That on August 31, 2012, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiff's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
9. That on March 19, 2013, pursuant to General Municipal Law 50(h), a hearing was held at the Office of the Comptroller.
10. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

FACTUAL BACKGROUND

11. On or about June 6, 2012, at about the late afternoon/early evening, Plaintiff, an African-American male, was lawfully on Georgia Avenue in Brooklyn, State of New York.
12. Plaintiff's acquaintance went to a grocery store on Livonia Avenue, and, about ten minutes later, Plaintiff heard five to seven gunshots coming from the direction of the grocery store.
13. Plaintiff proceeded towards the store, in order to discern whether his friend, and/or others he knew, had been injured in the shooting.

14. Upon his arrival at the location, Plaintiff noticed that police officers were already in the process of clearing civilians from the area.
15. An officer then pushed Plaintiff in an effort to cause him to clear the area.
16. Plaintiff moved on down the street, and within a matter of minutes, he was approached by Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3, all New York City Police Officers. One of the officers grabbed his jacket sleeve, but then let him go, and Plaintiff began walking away again.
17. Within moments, Plaintiff turned the corner, and was immediately knocked down from behind by the Defendant officers.
18. He got back on his feet and asked who had pushed him down.
19. One of the officers then put Plaintiff in a chokehold, and flung him violently to the ground.
20. The officers then jumped on top of him, and continued to choke him.
21. Eventually, the officers rolled Plaintiff onto his stomach and handcuffed him.
22. During the entire incident, Plaintiff's hands were down, to show he was not resisting or fighting.
23. While Plaintiff was being dragged to a police car, one of the officers threatened to punch him in the face if he did not "shut up."
24. Plaintiff was taken to the stationhouse on Alabama and Sutter Avenues known as "PSA 2."
25. Upon arrival at the precinct, Plaintiff was searched and his personal effects confiscated; he was left in a small and cramped cell for approximately two hours

before he was issued a summons for “disorderly conduct” and released.

26. Plaintiff then returned to his friend’s house where an ambulance was called and he was transported to Brookdale Hospital.
27. At the hospital, Plaintiff was treated for a large laceration on his right knee, a bruise on his forehead, and pain and swelling in his neck, among other injuries.
28. The summons was ultimately dismissed as “legally insufficient” on September 4, 2012.
29. As a result of the foregoing, Plaintiff sustained severe and permanent physical and emotional injuries and damages, including injuries to his knee, head and neck, as well as severe emotional distress including fear of police officers and nervousness when he sees one.

**AND AS FOR A FIRST CAUSE OF ACTION FOR ASSAULT ON BEHALF
OF PLAINTIFF AGAINST ALL DEFENDANTS**

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
31. That at all times and hereinafter mentioned Defendants POLICE OFFICER “JOHN” AZIZE and POLICE OFFICERS “JOHN DOES” 1-3 were acting within the scope of their employment for Defendant CITY OF NEW YORK.
32. That at all times hereinafter relevant, Plaintiff was lawfully standing and/or walking on a public sidewalk, street and/or roadway.
33. Plaintiff was willfully, wantonly, maliciously, and recklessly assaulted by Defendants POLICE OFFICER “JOHN” AZIZE and POLICE OFFICERS “JOHN DOES” 1-3.
34. That due to these assaults, plaintiff has suffered permanent physical and emotional damages.

35. The defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3 were within the scope of their employment at the time of the assaults.
36. Because defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3 were within the scope of their employment, Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and RAYMOND KELLY are liable for all damages as a result of Defendants' POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3's assaults.
37. These actions by the defendants were a proximate cause of plaintiff's injuries.
38. Solely by reason of the foregoing, the plaintiff has sustained damages.

**AND AS FOR A SECOND CAUSE OF ACTION FOR BATTERY ON
BEHALF OF PLAINTIFF AGAINST ALL DEFENDANTS**

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
40. Plaintiff was the victim of battery at the hands of POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3.
41. Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3 herein made bodily contact with Plaintiff.
42. Said contact was harmful or offensive.
43. The defendants herein intended to make said contact with Plaintiff and without Plaintiff's consent.
44. The Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3 were within the scope of their employment at the time of the batteries.

45. Because defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3 were within the scope of their employment, Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and RAYMOND KELLY are liable for all damages as a result of Defendants' POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3's batteries.

46. Said batteries were the proximate cause of plaintiff's injuries.

47. Solely by reason of the foregoing, the plaintiff has sustained damages.

AND AS FOR A THIRD CAUSE OF ACTION FOR NEGLIGENCE ON BEHALF OF PLAINTIFF AGAINST ALL DEFENDANTS

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

49. On about June 6, 2012, Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, through its agents and/or employees, were negligent, careless and reckless in their treatment, conduct and actions towards Plaintiff.

50. Said negligence, carelessness, and recklessness was the sole and proximate cause of Plaintiff's injuries incurred on the above-mentioned date.

51. Said injuries were caused solely and wholly by reason of the negligence and carelessness of defendants with no fault or culpable conduct on the part of the plaintiff contributing thereto.

52. As a result of defendants' negligence as aforesaid, Plaintiff was severely injured both internally and externally, that plaintiff became sick, sore, lame, disabled, and has suffered great pain, shock and mental anguish and will continue to suffer for a long time to come and, upon information and belief, has been permanently injured; that by reason of the foregoing, plaintiff has been obligated to and did necessarily employ

medical aid and medicines in an attempt to cure said injuries, all to plaintiff's damage in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AND AS FOR A FOURTH CAUSE OF ACTION FOR FALSE ARREST ON
BEHALF OF PLAINTIFF AGAINST ALL DEFENDANTS**

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
54. That the defendants intended to restrict Plaintiff's freedom of movement and that defendants did in fact restrict Plaintiff's freedom of movement.
55. That Plaintiff's freedom of movement was directly restricted by the acts of the defendants by illegally stopping, detaining, investigating and arresting Plaintiff without reasonable suspicion or probable cause.
56. That Plaintiff was aware that his freedom of movement was restricted and suffered great humiliation, injury to reputation, emotional injuries, and damages as a result of being falsely arrested and detained for investigation.
57. That the defendants have caused damages to the Plaintiff by their false arrest and detention of Plaintiff, and Plaintiff is entitled to recover against the defendants for injuries, damages and losses proximately caused by their false arrest as set forth in this Complaint.

**AND AS FOR A FIFTH CAUSE OF ACTION FOR FALSE IMPRISONMENT ON
BEHALF OF PLAINTIFF AGAINST ALL DEFENDANTS**

58. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
59. Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN

DOES" 1-3 individually and/or jointly and in conspiracy, falsely imprisoned Plaintiff.

60. That the defendants intended to restrict Plaintiff's freedom of movement and that defendants did in fact restrict Plaintiff's freedom of movement.

61. That Plaintiff's freedom of movement was directly restricted by the acts of the defendants by illegally stopping, detaining, investigating, arresting and confining Plaintiff without reasonable suspicion or probable cause.

62. That Plaintiff was aware that his freedom of movement was restricted.

63. Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3 are liable for their false imprisonment of Plaintiff because said false imprisonment was proximately caused by their unlawful actions as stated above.

64. As a result of the wrongful acts of the Defendants in falsely imprisoning Plaintiff, he suffered injuries and damages as stated above.

AND AS FOR A SIXTH CAUSE OF ACTION FOR NEGLIGENT HIRING ON BEHALF OF PLAINTIFF AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND RAYMOND KELLY

65. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

66. Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3 were all hired by defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT in the capacity of Police Officer.

67. Defendant CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT had a duty to properly screen and hire prospective Police Officers.

68. Defendant CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT negligently breached said duty by improperly screening and hiring

Police Officers, namely, Defendants POLICE OFFICER “JOHN” AZIZE and POLICE OFFICERS “JOHN DOES” 1-3.

69. As a result of said negligent hiring, Defendants POLICE OFFICER “JOHN” AZIZE and POLICE OFFICERS “JOHN DOES” 1-3 were able to perpetrate harms on plaintiff.
70. Said harms perpetrated by defendants and/or their employees or agents, are a proximate cause of plaintiff’s injuries and damages.
71. Solely by reason of the foregoing the plaintiff has sustained damage.

**AND AS FOR A SEVENTH CAUSE OF ACTION FOR NEGLIGENT
SUPERVISION ON BEHALF OF PLAINTIFF AGAINST DEFENDANTS CITY
OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND RAYMOND
KELLY**

72. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
73. Defendants POLICE OFFICER “JOHN” AZIZE and POLICE OFFICERS “JOHN DOES” 1-3 were all hired by defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT in the capacity of Police Officer.
74. Defendant CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT had a duty to properly supervise all its employees, including Defendants POLICE OFFICER “JOHN” AZIZE and POLICE OFFICERS “JOHN DOES” 1-3.
75. Defendant CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT negligently breached said duty and failed to supervise a Police Officer, namely Defendants POLICE OFFICER “JOHN” AZIZE and POLICE OFFICERS “JOHN DOES” 1-3.

76. As a result of said negligent supervision, Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3 were able to perpetrate harms on plaintiff.

77. Said harms perpetrated by defendants and/or their employees or agents, are a proximate cause of plaintiff's injuries and damages.

78. Solely by reason of the foregoing the plaintiff has sustained damage.

**AND AS FOR AN EIGHTH CAUSE OF ACTION FOR NEGLIGENT
RETENTION ON BEHALF OF PLAINTIFF AGAINST DEFENDANTS CITY OF
NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND RAYMOND
KELLY**

79. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

80. Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3 were all hired by defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT in the capacity of Police Officer.

81. Defendant CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT had a duty to retain persons fit for their designated duties, including Police Officers.

82. Defendant CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT negligently breached said duty by improperly retaining Police Officers, namely Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3.

83. As a result of said negligent retention, Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3 were able to perpetrate harms on plaintiff.

84. Said harms perpetrated by defendants and/or their employees or agents, are a proximate cause of plaintiff's injuries and damages.

85. Solely by reason of the foregoing the plaintiff has sustained damage.

**AND AS FOR A NINTH CAUSE OF ACTION FOR INTENTIONAL
INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF PLAINTIFF
AGAINST ALL DEFENDANTS**

86. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

87. That at all times and hereinafter plaintiff was lawfully about public sidewalks, streets and/or roadways.

88. Said conduct by Defendants caused Plaintiff severe emotional distress.

89. Said conduct by Defendants was extreme and outrageous and in addition, Defendants intended to cause and disregarded a substantial probability of causing severe emotional distress. Moreover, there was a causal connection between the conduct and the injuries suffered by plaintiff. Finally, plaintiff has suffered severe emotional distress as a result of defendants' intentional infliction of emotional distress.

90. Said harms perpetrated by defendants are a proximate cause of plaintiff's injuries and damages.

**AND AS FOR A TENTH CAUSE OF ACTION FOR NEGLIGENT INFLECTION
OF EMOTIONAL DISTRESS ON BEHALF OF PLAINTIFF AGAINST ALL
DEFENDANTS**

91. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

92. That at all times and hereinafter plaintiff was lawfully about public sidewalks, streets or roadways.

93. Said conduct by Defendants caused plaintiff severe emotional distress.
94. Said conduct by Defendants constituted negligent infliction of emotional distress in that Defendants negligently and wantonly brought about plaintiff's severe emotional distress.
95. Said harms perpetrated by defendants are a proximate cause of plaintiff's injuries and damages.

AND AS FOR AN ELEVENTH CAUSE OF ACTION FOR USE OF EXCESSIVE FORCE ON BEHALF OF PLAINTIFF AGAINST ALL DEFENDANTS

96. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
97. Defendants' conduct in using force upon plaintiff for the purpose of causing him injury, and not as part of a good faith effort to maintain order or restore discipline, violated plaintiff's rights.
98. As a direct result of Defendants' use of excessive force, Plaintiff sustained injuries and damages.

AND AS FOR A TWELFTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION ON BEHALF OF PLAINTIFF AGAINST ALL DEFENDANTS

99. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
100. By virtue of the foregoing, Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3, acting in concert with each other and with additional persons for whose acts they are liable, initiated, continued and/or cause the initiation or continuation of, criminal proceedings against Plaintiff.
101. The criminal proceedings terminated in Plaintiff's favor.
102. There was no probable cause for the commencement or continuation of the

criminal proceedings.

103. Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS

"JOHN DOES" 1-3 acted with actual malice.

104. The Defendants POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS

"JOHN DOES" 1-3 acted within the scope of their employment with Defendant CITY OF NEW YORK.

105. Because defendants POLICE OFFICER "JOHN" AZIZE and POLICE

OFFICERS "JOHN DOES" 1-3 were within the scope of their employment,

Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT

and RAYMOND KELLY are liable for all damages as a result of Defendants'

POLICE OFFICER "JOHN" AZIZE and POLICE OFFICERS "JOHN DOES" 1-3's

actions.

JURY TRIAL

106. Plaintiff demands a trial by jury of all issues in this action that are so triable.

PRAYER FOR RELIEF

Wherefore, Plaintiff demands compensatory and punitive damages from these Defendants' CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, RAYMOND KELLY, Commissioner of the New York City Police Department, POLICE OFFICER "JOHN" AZIZE, and POLICE OFFICERS "JOHN DOES" 1-3, jointly and severally, in an amount to be determined at trial, plus any available statutory remedies, both legal and equitable, and interests and costs.

Dated: Lake Success, New York
September 4, 2013

Yours, etc.,

CRONIN & BYCZEK, LLP
Attorneys for plaintiff

BY: 

Moshe C. Bobker, Esq.
1983 Marcus Avenue, Suite C-120
Lake Success, New York 11042
(516) 358-1700

ATTORNEY'S VERIFICATION

Moshe C. Bobker, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

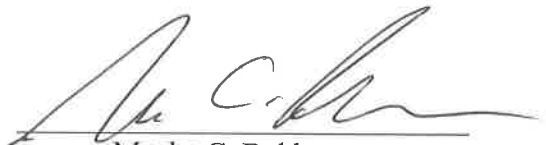
I am an attorney at CRONIN & BYCZEK, LLP, attorneys of record for Plaintiff, **DONALD POWELL**. I have read the annexed

SUMMONS AND VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the plaintiff maintain their offices.

DATED: Lake Success, New York
September 4, 2013



Moshe C. Bobker